

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #7	CCRB Case #: 201904703	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/31/2019 12:10 AM	Location of Incident: Malta Street and New Lots Avenue	Precinct: 75	18 Mo. SOL 11/30/2020	EO SOL 7/17/2021	
Date/Time CV Reported Fri, 05/31/2019 9:51 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 05/31/2019 9:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Kern	10507	955000	SRG
2. POM Nelson Reyes	27566	953309	SRG
3. SGT Cesar Gomez	00477	941024	SRG

Officer(s)	Allegation	Investigator Recommendation
A.SGT Cesar Gomez	Abuse: Sergeant Cesar Gomez stopped § 87(2)(b)	
B.SGT Cesar Gomez	Force: Sergeant Cesar Gomez used physical force against § 87(2)(b)	
C.POM Sean Kern	Force: Police Officer Sean Kern used physical force against § 87(2)(b)	
D.POM Nelson Reyes	Force: Police Officer Nelson Reyes used physical force against § 87(2)(b)	
E.SGT Cesar Gomez	Abuse: Sergeant Cesar Gomez interfered with § 87(2)(b) use of a recording device.	
F.SGT Cesar Gomez	Abuse: Police Officer Cesar Gomez refused to provide his shield number to § 87(2)(b)	
G.POM Sean Kern	Abuse: Police Officer Sean Kern refused to provide his shield number to § 87(2)(b)	
H.POM Nelson Reyes	Abuse: Police Officer Nelson Reyes refused to provide his shield number to § 87(2)(b)	

Case Summary

On May 31, 2019, § 87(2)(b) filed this complaint with the CCRB via the online website.

The CCRB did not receive video evidence in this case.

On June 4, 2019, § 87(2)(b) was called at the number he provided when he filed this complaint, and a voicemail message was left requesting a call back. On June 7, 2019, § 87(2)(b) was called a second time. He answered and confirmed his contact information, but was unable to schedule a date for an interview, and asked for a call back approximately one week later.

On June 17, 2019, § 87(2)(b) was called and a voicemail message was left requesting a call back. On June 21, 2019, § 87(2)(b) was called a fourth time. He answered and scheduled an interview at the CCRB for June 26, 2019. On June 24, 2019, a text message reminder was sent to § 87(2)(b). On June 26, 2019, § 87(2)(b) failed to appear for his interview without cancellation notice. Between June 27, 2019 and July 8, 2019, § 87(2)(b) was called three more times at his confirmed number, but there was no response each time, and three voicemail messages were left requesting calls back.

Between June 4, 2019 and July 8, 2019, four unreturned letters and emails were sent to § 87(2)(b) at his confirmed mailing and email addresses.

On July 8, 2019, an NYC DOC search confirmed that § 87(2)(b) is not incarcerated.

§ 87(2)(g)

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
-----------	--------------------	------

Squad Leader: _____

Signature	Print Title & Name	Date
-----------	--------------------	------

Reviewer: _____

Signature	Print Title & Name	Date
-----------	--------------------	------